

Applicable Law Acts

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User Query :

I registered on an online lending application and allowed access to my contacts because the app said it was necessary for processing the loan. After I missed one instalment, the company began calling people from my contact list and telling them about my loan. Some contacts also received messages containing my photograph and personal details. I never agreed to this use of my information. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 9/Combined Act

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 72A	— Punishment for disclosure of information in breach of lawful contract
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Potentially relevant if the lender/service provider obtained personal information under a lawful contract and disclosed it without consent/in breach of contract with the intent or knowledge required by **section 72A** .

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- Section 72A is conditional because its mental-state and lawful-contract elements must be established. Ordinary sharing of a non-intimate photograph does not by itself create a private-area image offence.

✓ STRENGTHS & RIGHTS

- 1
- The app obtained contact-list access in connection with a service relationship and then disclosed loan/personal details to those contacts.

✗ RISKS & OBLIGATIONS

- 1
- Do not treat an ordinary profile photograph as a private-area image.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Preserve permissions screens, privacy notices, collection-purpose statements and messages sent to contacts.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 No clear BNS offence is established solely by the stated disclosure/collection facts. Additional threats, extortion, defamation or other conduct could change the analysis.

✓ STRENGTHS & RIGHTS

- 1 Avoids forcing criminal-law sections onto a primarily data-processing complaint.

✗ RISKS & OBLIGATIONS

- 1 Debt-collection conduct can raise other legal issues, but the current facts are insufficient for a precise BNS charge.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Keep the BNS branch conditional unless additional offence facts are supplied.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

App permission screens/messages and communications to contacts may be electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant if these records are tendered in a proceeding.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 BSA is secondary here and concerns proof of digital records, not the substantive privacy/data-processing duty.

✓ STRENGTHS & RIGHTS

- 1 Permission screens and sent messages can establish scope of consent and later disclosure.

✗ RISKS & OBLIGATIONS

- 1 Do not present BSA as the source of the privacy obligation.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Preserve app permissions/consent screens and recipient messages.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

APPLICABLE SECTIONS

Section 4 — Grounds for processing personal data

Processing must have a lawful basis under the Act.

Section 5 — Notice

The Data Principal should receive the required notice about personal data and purpose.

Section 6 (1) — Consent

Consent must be free, specific, informed, unconditional and unambiguous and limited to the specified purpose/necessary data.

Section 11 — Right to access information about personal data

Includes information about processing and identities of Data Fiduciaries/processors with whom data has been shared, subject to the statutory text.

Section 13 — Right of grievance redressal

Provides a grievance route against a Data Fiduciary/Consent Manager.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The consent issue is strong: access to the contact list was represented as necessary for loan processing, but subsequent disclosure of loan status/photo/personal details to contacts is a different use. **Section 6 (1)** is particularly relevant because the Act itself illustrates unnecessary contact-list access.

✓ STRENGTHS & RIGHTS

1 The facts expressly distinguish the stated collection purpose from the later disclosure/use.

✗ RISKS & OBLIGATIONS

1 Actual legal enforceability must be separated from doctrinal mapping because the cited substantive provisions are not yet in force on 29 Aug 2026.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.
 2. For a research benchmark, keep the section mapping but mark it as prospective/doctrinal rather than currently enforceable.
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